

		In <i>Dhital</i>, the court ruled, “the economic loss rule does not cover such [fraudulent inducement] claims...For fraudulent inducement and the other existing exceptions listed in <i>Robinson</i>, the duty that gives rise to tort liability is either completely independent of the contract or arises from conduct which is both intentional and intended to harm. In our view, that independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions that were agreed to.” (<i>Dhital, supra</i>, 84 Cal.App.5th at p. 841.) Applying <i>Dhital</i>, the economic loss rule does not bar Plaintiffs’ sixth cause of action for fraudulent inducement – concealment. Therefore, the demurrer to the sixth cause of action is OVERRULED. Moving Defendant to give notice. 2. MOTION TO STRIKE PORTIONS OF COMPLAINT Defendant Toyota Motor Sales, U.S.A., Inc.’s motion to strike the request for punitive damages in the Complaint filed by Plaintiff Isaac Pedrosa Hernandez is DENIED. Civil Code Section 3294, subdivision (a) states: “(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant.” Civil Code Section 3294, subdivision (c)(3) states: “ ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” For the reasons discussed in the demurrer, the Complaint alleges sufficient allegations of Fraudulent Inducement – Concealment to withstand demurrer. Therefore, the Complaint sufficiently alleges fraud for purposes of Civil Code Section 3294, subdivision (c)(3). Moving Defendant to give notice.
11.	CINEMATIC CAPITAL CORP. VS. SAID 2023-01343920	1. MOTION FOR ISSUANCE OF ORDER SHOWING CAUSE RE: CONTEMPT Plaintiff’s Motion for OSC Re: Contempt and Sanctions against Abbey Sinowetski (ROA 297) is DENIED.

Plaintiff's Request for Judicial Notice in support of the Motion is GRANTED as records of this Court. (See Evid. Code § 452, subd. (d).)

Plaintiff's Request for Judicial Notice in support of Plaintiff's Response is GRANTED as to Exhibits 1-3, 5, 6, 9-11 as records of this Court and the federal court. (See Evid. Code § 452, subd. (d).) As to Exhibits 4, 7, and 8 is GRANTED only as evidence of their publication/existence, but not as to truth of their contents.

The Court finds Defendant's counsel, Yakup Sari, did not meet and confer in good faith as previously ordered. While the parties worked together to schedule a call (see Sari Decl. ¶ 6, Ex. A.), during the call Sari threatened defense counsel, Andrew Phan, and did not participate in any meaningful discourse regarding the case or resolution of these motions. (Phan Decl., ¶ 3.) Phan sent a follow-up email to Sari, but he did not respond. (Phan Decl., ¶ 3.)

Plaintiff asserts an OSC Re: Contempt and monetary sanctions are warranted because Defendant willfully failed to comply with the Court's 10/15/24 discovery and sanctions order.

"The essential facts to establish contempt for violation of a court order are '(1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.' [Citation]" (Moore v. Superior Court of Orange County (2020) 57 Cal.App.5th 441, 456.)

When a contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit must be presented to the court or judge of the facts constituting the contempt, or a statement of facts by the referees, arbitrators, or other judicial officers. (Code Civ. Proc., § 1211(a).) Once an affidavit has been filed, an ex parte order to show cause will be issued commanding the accused to appear before the court and answer the charges. (Code Civ. Proc., § 1212.) When the party charged with the contempt appears, the court or judge must proceed to investigate the charge. The court or judge must hear any answer which the accused may make, and may examine witnesses for or against him or her. The hearing may be adjourned from time to time if necessary. (Code Civ. Proc., § 1217.) The party charged with contempt is entitled to a hearing at which they may present any appropriate defenses, either by affidavits or witnesses, or both. (Hotaling v. Superior Court, City and County of San Francisco (1923) 191 Cal. 501.) After the evidence has been presented, the court must determine whether the person proceeded against is guilty of the contempt charged. (Code Civ. Proc., § 1218(a).)

The defenses that may be asserted in contempt proceeding include:

- (1) invalidity of the judgment or order violated;
- (2) no notice or knowledge of the judgment or order violated;
- (3) inability to comply with the judgment or order violated; and
- (4) good faith violation coupled with a willingness to comply with the

judgment or order at the time of the hearing. (8 Witkin, California Proc. (4th ed.), Enforcement of Judgment §§ 341 to 345.)

If the person charged with contempt is found guilty, they may be punished by a fine not exceeding \$1,000 or by imprisonment for not more than five days, or both. (Code Civ. Proc., § 1218(a).)

Sinowetski argues her prior discovery delays were not the product of bad faith or willful misconduct, but of her unrepresented status combined with serious, documented medical conditions that substantially impaired her ability to manage legal obligations. The Court imposed sanctions against Sinowetski on 10/15/24 (\$2,870) and 4/14/26 (\$5,220). The discovery requests underlying the 2024 sanction orders were served on 4/9/24. (ROA No. 122.) Sinowetski contends she was in pro per at the time and her failure to respond was not a deliberate decision to obstruct discovery but the result of ignorance of the process. Sinowetski also states she suffered serious medical conditions beginning in or around 2023 that worsened substantially in late summer of 2025 when discovery deadlines were pending. (Sinowetski Decl., ¶ 3; Sari Decl., ¶ 5.) She contends her symptoms made it extremely difficult to perform consistent work or manage complex responsibilities without assistance. (Sinowetski Decl., ¶ 5, Ex. A.)

Plaintiff contends Sinowetski's statement that she was unrepresented at the time of noncompliance is demonstrably false because she was represented by her prior attorney, Mark Warsaw, from 1/30/24 until 9/18/25. Plaintiff is correct. Sinowetski was represented by Mark Warsaw when she made her first appearance in this action on 1/30/24 (ROA No. 16 [Answer]) until 9/18/25 (ROA No. 315 [Substitution of Attorney].)

Plaintiff does not address Sinowetski's medical condition. Sinowetski's misrepresentation about her lack of legal representation undermines her credibility about her medical condition. However, without more, there is no evidence that Sinowetski, or her prior counsel, willfully disobeyed the prior orders or acted in bad faith. Further, upon retention of counsel, verified responses were promptly served to all outstanding discovery sets. The motions heard on 4/16/26 were deemed moot as to the underlying production, with only the sanction requests remaining. The Court previously acknowledged "Defendant's new counsel appears to be making diligent efforts to comply with Defendant's discovery obligations."

Sinowetski also argues she is financially unable to satisfy the sanctions. In her declaration Sinoweski states that she is unable to maintain employment due to her medical conditions, is financially dependent on Said for basic living expenses, and has no bank accounts with available funds, no liquid savings, no investment assets, and no independent financial resources. (Sinowetski Decl., ¶¶ 6, 10.) Sinowetski states she is not seeking to escape her obligations

entirely and is willing to comply to the extent reasonably possible given her present financial circumstances.

Plaintiff contends Sinowetski's LinkedIn account indicates she works in an insurance company. However, this is neither admissible evidence nor judicially noticeable.

Sinowetski has therefore established she lacks the ability to pay and her non-payment was not willful. The Court finds it appropriate under the circumstances to reduce the total sanctions owed by Sinowetski from \$8,090 to \$4,045 payable to Plaintiff in 4 equal monthly payment with the first payment due 30 days from today's date. (See Code Civ. Proc., § 128, subd. (a)(8).)

The motion is DENIED.

An OSC re Sanctions Pursuant to CCP § 177.5 against Yakup Sari and the Sari Law Firm for Failing to Meet and Confer in Good Faith as Ordered is scheduled for 6/16/26 at 9:00 a.m., in Dept. 32.

2. MOTION FOR SANCTIONS

Plaintiff's Motion for OSC Re: Contempt and Sanctions against Mohamed Said (ROA 303) is DENIED.

Plaintiff's Request for Judicial Notice in support of the Motion is GRANTED as records of this Court. (See Evid. Code § 452, subd. (d).)

Plaintiff's Request for Judicial Notice in support of Plaintiff's Response is GRANTED as to Exhibits 1-3, 5, 6, 9-11 as records of this Court and the federal court. (See Evid. Code § 452, subd. (d).) As to Exhibits 4, 7, and 8 is GRANTED only as evidence of their publication/existence, but not as to truth of their contents.

Plaintiff asserts an OSC Re: Contempt and monetary sanctions are warranted because Defendant willfully failed to comply with the Court's 10/15/24 discovery and sanctions order.

Said contends his failure to comply was the result of his unrepresented status. However, unlike Sinowetski, Said was in fact unrepresented until 9/11/25 (See ROA No. 21 [Answer filed by Sai, in pro per] & ROA No. 307 [Substitution of Attorney].) However, being unrepresented is not an excuse. "A self-represented litigant who is not indigent must expect and receive the same treatment as if represented by an attorney-no different, no better, no worse. (*Nuño v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811.)

Said also argues he is financially unable to satisfy the sanctions. In his declaration, Said states he is the sole financial provider for two separate households because he and his wife reside separately and Sinowetski is not employed. (Said Decl., ¶¶ 2, 3, 5.)

Said states his employment requires out-of-town travel during the work week and has to pay the costs of lodging transportation, fuel and meals. (Said Decl., ¶ 4.) He pays approximately \$1,682 per month in rent for his own residence and contributes approximately \$3,000 per month toward the household where Sinowetski and the children live, totaling \$4,682 per month before food, insurance, debt service, taxes, or any other fixed cost. (Said Decl., ¶ 5; Decl. Yakup Sari, ¶ 3.) Said states that after all necessary obligations are accounted for, his income is fully consumed and he is operating at a monthly deficit with nominal account balances and no liquid savings. (Said Decl., ¶¶ 6, 7.)

Plaintiff contends Said was criminally convicted and served multiple years in federal prison for absconding with \$3.4M and has not paid the restitution sanction; Said continues to possess such monies; Sinowetski is the continued beneficiary of such in that Said has continued to purchase expensive Rolex watches, Sinowetski purchases expensive jewelry, both drive luxury vehicles and both dine at expensive restaurants; and Said has ancillary income outside his disclosed position. However, Plaintiff has not presented admissible evidence supporting these contentions other than the federal court records showing Said plead guilty to wire fraud and conspiracy to commit money laundering in 2018. The guilty plea alone does not establish Said has the ability to pay the sanctions.

Said has therefore established he lacks the ability to pay and his non-payment was not willful. The Court finds it appropriate under the circumstances to reduce the total sanctions owed by Said from \$12,350 to \$6,175 payable to Plaintiff in 4 equal monthly payment with the first payment due 30 days from today's date. (See Code Civ. Proc., § 128, subd. (a)(8).)

The motion is DENIED.